AUSTRALIAN COMPETITION & CONSUMER COMMISSION

CVS Group – Paws at Prospect Vet and Eyes at Prospect Vet

MN-70020

Phase 1 Determination

Acquisition may be put into effect

21 July 2026

1. Determination and statement of reasons

Notified acquisition	The proposed acquisition by CVS Vets (Australia) Proprietary Limited, which is part of CVS Group Plc (together, **CVS Group**) of 60% of the shares in Newman Vet Pty Ltd, trading as Paws at Prospect Vet and Eyes at Prospect Vet (**Paws**) (the **Acquisition**). The existing owners of Paws will retain the remaining 40% of shares in Paws.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, CVS Group, is an integrated veterinary services provider based in the United Kingdom and listed on the London Stock Exchange. In Australia, CVS Group owns a number of small animal veterinary practices in Queensland, New South Wales, the Australian Capital Territory, Victoria, South Australia and Western Australia. CVS Group currently owns three veterinary practices in Adelaide: Walkerville Vet, Pet Universe Manningham and Pet Universe Northgate. The target, Paws, is a small animal veterinary practice in Adelaide that also supplies specialist ophthalmic veterinary services on referral from 'first opinion' veterinary practices.
Overlap between the parties	CVS Group and Paws (together, the **Parties**) overlap in the supply of small animal general practice veterinary services supplied in standard hours (**General Veterinary Services**) in Adelaide. Small animal veterinary practices attend to small animals (such as cats, dogs, guinea pigs, birds, rabbits and other pets), rather than larger animals (such as cattle, sheep and horses), and offer services such as first opinion consultations, general and preventative health care/advice, surgery, microchipping, dentistry, radiology, pathology, pharmacy and related services such as puppy school. While Paws supplies specialist ophthalmic veterinary services, CVS Group does not supply these services in Adelaide, and therefore there is no overlap between the Parties in relation to these services.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (**ACCC**) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the *Competition and Consumer Act 2010* (Cth) (the **Act**). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties, publicly available information and other materials available to the ACCC.

	The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings: • the market share aggregation resulting from the Acquisition is estimated to be low; • the merged entity would continue to face competition from multiple alternative General Veterinary Services practices in the local area surrounding Paws; • the merged entity would continue to face competition from other large suppliers of General Veterinary Services at the state and national levels.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act